

Mahavir Kaushik vs Neeraj Rohilla on 17 December, 2024

:1:

MAHAVIR KAUSHIK VS. NEERAJ ROHILLA

CNR No. DLSW020237182021
CC NI ACT No. 10465/2021

IN THE COURT OF SONICA MEENA, JUDICIAL MAGISTRATE FIRST
CLASS
(NI ACT) DIGITAL COURT-02 (SOUTH-WEST), DWARKA COURT, NEW
DELHI.

DLSW020237182021

MAHAVIR KAUSHIK
S/O LT. SH. LAL CHAND KAUSHIK,
R/O A-188, GULAB BAGH, UTTAM NAGAR, NEW DELHI 110059

.....Complainant

VERSUS

NEERAJ ROHILLA
S/O SH. JAGMOHAN ROHILLA,
R/O PLOT NO. 35/10, SATYAM VIHAR, PHASE 2,
CHANCHAL PARK, NEW DELHI

Present: Complainant Mahavir Kaushik in person (Who is also an advocate)
Mr. Manshu Kapoor,, Ld. Counsel for accused with Accused.

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Date: 2024.12.17

(SONICA MEENA)
JMFC-02 (Digital Court-02)
South West District,
Dwarka Courts/ND/17.12.2024

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:2:
MAHAVIR KAUSHIK VS. NEERAJ ROHILLA

CNR No. DLSW020237182021
CC NI ACT No. 10465/2021

Case No. : CC NI ACT 10465/2021

CNR No. : DLSW020237182021

Offence complained of : U/s 138 Negotiable Instruments Act, 1881
Plea of accused : Pleaded not guilty.
Final Arguments : 16.12.2024

Date of Institution of case : 04.06.2021

Date of decision of the case : 17.12.2024

Final Order : Convicted

Date: 17.12.2024

Complaint u/s 138 Negotiable Instruments Act, 1881

J U D G M E N T:

1. Vide this judgment, I shall dispose of the aforementioned complaint case filed by the complainant Mahavir Kaushik (hereinafter referred to as the 'complainant') against accused, Neeraj Rohilla (hereinafter referred to as the 'accused') u/s 138 of Negotiable Instruments Act, 1881 (hereinafter referred to as 'NI Act' in short).

2. Factual Matrix: The complainant's case is that the complainant and accused are well known and had cordial relations as the accused was the tenant of the complainant's property bearing No. A-43, Mansa Ram Park, New Delhi -110059. The complainant also has family relation with Deepak Datta who is the Brother-in- law of the accused. On 8.12.2017 the complainant executed a rent agreement and gave property on rent to the accused for 11 months which was later renewed. On SONICA Digitally signed by SONICA MEENA MEENA 16:33:41 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR

KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 15/11/2018 accused requested for a friendly loan of Rs.1,50,000/- on the recommendation of the father of the accused and brother-in-law Deepak Datta for which a post dated cheque was given by the accused and said cheque was bounced with the remarks "Insufficient Funds"(for which a separate case is pending in this court).

It is further submitted by the complainant that that on 11th July 2019 last rent agreement for 11 months was executed between the complainant and accused and according to condition of agreement accused and his family were to vacate the flat on 10-05-2020 but accused turned truant in paying the rent and the complainant asked them to vacate the flat as the accused persons did not pay the rent since January- 2020 and other dues of 2019 along with rent were also pending. It is further submitted by the complainant that accused was asked to vacate the flats but on the request of family of accused and Deepak Datta complainant allowed the accused and his family to stay for some more time but the accused neither paid the rent nor vacated the flat despite requests made by the complainant. It is further submitted by the complainant that father of accused was bad ridden due to some chronicle disease and accused had requested the complainant to consider the request of non-vacation of flat till the CORONA-19 was diluted and on humanity ground the complainant was convinced by Deepak Datta and father of accused. It is further submitted by the complainant that the rent of the flat was not paid by the accused during 2020 (only the wife of complainant paid Rs. 14,000/- two months rent during 2020) first due to loss in business and on the ground of sickness of Sh. Jagmohan the father of accused. It is further submitted by the complainant that total funds accumulated including rent of 2020 and other charges and balance of 2019 was Rs. 1,10,000/- (Rupees One lakh ten thousand only) up to Dec. 2020. It is further submitted by the complainant that in January-2021 the accused vacated the rented flat without informing the complainant or any of his family member, even accused did not inform Deepak Datta also about the location where the accused shifted the residence but Deepak Datta succeeded to locate the present address of accused i.e. Plot no. 35/110, Satyam Vihar, Phase li, Chanchal Park, Delhi but the accused was never available and under the pressure of relatives SONICA Digitally signed by SONICA MEENA MEENA 16:33:39 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 and Deepak Datta the wife of accused visited residence of complainant along with Deepak Datta. It is further submitted by the complainant that on 25.01.2021 accused, his wife, Deepak Datta and his wife arrived at the residence of complainant and requested to reduce the amount and accept the cheque of Rs. 1,00,000/- (Rupees One lakh only) which the complainant agreed but the accused requested for some time and finally the accused agreed to give the cheque of Rs. 1,00,000/- (Rupees One lakh only) with a view to clear the legally enforceable dues (rent of the flat for 2020 and other dues) and other liability towards complainant the accused had issued a post-dated cheque No. 000002 dt. 30/03/2021 for a sum of Rs. 1,00,000/- drawn on Andhra Bank Now Union Bank of India, Uttam Nagar Branch New Delhi in favour of complainant with the promise that the said cheque shall be encashed on its presentation on due date. It is further submitted by the complainant that as per assurance given by accused on 25-03-2021 the complainant requested the accused to maintain sufficient funds in the above account so that the cheque given can be encashed on 30/03/2021 on the due date, however, the accused again requested the complainant to present the said cheque after 15 days as due to illness of the wife of

accused the required amount could not be maintained in the said account. It is further submitted by the complainant that accused also informed the complainant that his property in Jind Haryana has already been sold and the payment would be received before 15th April 2021 and assured the complainant that on 15th April 2021 the cheque would be encashed. But when the complainant tried to contact accused and his father on 15.04.2021 no response was given by them and so on 16.04.2021 complainant contacted Deepak Datta to contact accused and his father but there was no response. It is further submitted by the complainant that on 20.04.2021 Deepak Datta visited the present address of accused but neither accused nor his father was present. It is further submitted by the complainant that complainant also told the wife of accused to ask the accused to contact complainant but no response was received from them. It is further submitted by the complainant that finally, on 22.04.2021 the complainant presented the aforesaid cheque of Rs. 1,00,000/- (Rupees One lakh only) to his banker Axis Bank Dwarka Mod Branch New Delhi SONICA Digitally signed by SONICA MEENA MEENA 16:33:44 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 but the said cheque was returned unpaid with the remarks "FUNDS INSUFFICIENT vide Returning Memo dated 26/04/2021 and complainant immediately contacted the accused and asked him to return the cheque amount but the accused flatly refused to repay the cheque amount on the ground of CORONA CRISIS and pleaded his helplessness. It is further submitted by the complainant that complainant having no alternate has served a legal notice dated 05.05.2021 calling upon him to pay the amount of the above-mentioned cheque to the complainant but the accused neither replied nor complied with the Notice and failed to pay the amount of the cheque to the complainant within the stipulated time. Therefore, in these circumstances, the accused has rendered himself liable to an offence punishable under Section 138 NI Act and he should be punished for the same. Hence, being aggrieved, the complainant filed the present complaint under section 138 of The Negotiable Instruments Act, 1881 on 11.01.2021 and prayed that the accused be tried and punished.

3. In his pre-summoning evidence, the complainant Mahavir Kaushik examined only himself as CW-1 and tendered following documents:

1. Ex.CW-1/A Rent agreement dt. 11.07.2019
2. Ex.CW-1/B Cheque 000002 dt. 30.03.2021 for Rs.1 lakh.
3. Ex.CW-1/C Return memo dt. 26.04.2021
4. Ex.CW-1/D Legal Notice dt. 05.05.2021

4. Summoning of accused: After perusing the complaint and hearing the ar-

guments of the complainant, accused was summoned vide order dated 09.10.2021 and the accused entered appearance in the present case on 10.11.2021 and he was admitted to bail on 23.12.2021.

5. Notice: Notice u/s 251 Cr.PC was framed against accused on 03.03.2022, to which he pleaded not guilty and claimed trial, on the same date accused was SONICA Digitally signed by SONICA MEENA MEENA 16:33:45 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 granted opportunity to cross examine the complainant u/s 145(2) NI Act which was allowed.

6. Complainant's evidence: To support his case, the complainant had stepped into the witness box on 18.05.2024 as CW-1 and was examined in chief in which he tendered his evidence by way of affidavit and the averments made in the complaint were reiterated. On the same day the complainant was cross examined and his cross examination was concluded and the complainant evidence was closed by the complainant.

7. Statement of accused u/s 313 Cr.PC: On 07.06.2024, the statement of ac-

cused u/s 313 Cr.PC was recorded, wherein the accused stated in his defence that "The complainant pressurized me to give the cheque ."

8. Defence Evidence: On 18.07.2024, accused Neeraj Rohilla DW1 got him-

self examined-in-chief and he was cross-examined and discharged. The accused also examined DW2 Deepak Dutta on 03.10.2024 he was cross-examined and dis- charged. Thereafter the accused closed the DE and the case was then listed for Fi- nal Arguments.

9. Final Arguments: On 16.12.2024 final arguments are heard on behalf of both the parties and judgement is pronounced on the same day.

10. Arguments on behalf of the Complainant: The Ld. Counsel for the com-

plainant vehemently argued that the accused owes the amount of rent to the com- plainant. The case of the complainant stands proved and accused has failed to cre- ate doubt on the case of the complainant. He has further stated that the accused had admitted his signature on the cheque in question and has failed to prove that the cheque was not filled by him. The legal demand notice has been served upon the accused as he has his signature upon it which he has not disputed. The accused has not discharged the burden of proof that the cheque was not issued for debt or lia-

SONICA Digitally signed by SONICA MEENA MEENA 16:33:40 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 bility. Accordingly, the offence under section 138 NI Act stands proved beyond reasonable doubt and the accused be punished and penalty may be imposed on him for double the amount of cheque issued to the complainant.

11. Arguments on behalf of the Accused: Per contra, the Ld. Counsel for the accused stated that accused has no liability towards the complainant. The accused had handed over the cheque in question to his late father in 2020 and not to the complainant. The father of the accused used to deal with the complainant and not the accused. The accused had cleared all the rent due to the complainant. Accordingly, Ld. Counsel for the accused stated that the accused be acquitted from the offence under section 138 Negotiable Instruments Act, 1881.

12. I have heard learned counsel for the parties and gone through the case file carefully and thoroughly with their assistance. I have gone through the arguments forwarded by both the counsels.

13. Before delving into the facts of the present case, it is pertinent to mention here that:-

"It is manifest that to constitute an offence under Section 138 of the Act, the following ingredients are required to be fulfilled:-

(i) a person must have drawn a cheque on an account maintained by him in a bank for payment of a certain amount of money to another person from out of that account;

(ii) The cheque should have been issued for the discharge, in whole or in part, of any debt or other liability;

(iii) that cheque has been presented to the bank within a period of three months from the date on which it is drawn or within the period of its validity whichever is earlier;

(iv) that cheque is returned by the bank unpaid, either because of the amount of SONICA Digitally signed by SONICA MEENA MEENA 16:33:42 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 money standing to the credit of the account is insufficient to honour the cheque or that it exceeds the amount arranged to be paid from that account by an agreement made with the bank;

(v) the payee or the holder in due course of the cheque makes a demand for the payment of the said amount of money by giving a notice in writing, to the drawer of the cheque, within 15 days of the receipt of information by him from the bank regarding the return of the cheque as unpaid;

(vi) the drawer of such cheque fails to make payment of the said amount of money to the payee or the holder in due course of the cheque within 15 days of the receipt of the said notice;

Being cumulative, it is only when all the afore-mentioned ingredients are satisfied that the person who had drawn the cheque can be deemed to have committed an offence under Section 138 of the Act."

14. Accordingly, in light of the aforementioned precedent, following issues arise in the context of the present case:

- (1) whether cheques were given for discharge, in whole or part, of any debt or other liability?
- (2) Whether the cheques have been returned as dishonoured on ground of the insufficiency of funds?
- (3) Whether the demand for payment of the cheque amount was made within 30 days of the receipt of the information of dishonour of cheque? (4) Whether the accused failed to make payment of the cheque amount within 15 days from the date of the receipt of the legal notice and the complaint was filed within one month from the date of arising of cause of action?

Whether cheques were given for discharge, in whole or part, of any debt or other liability?

The case of complainant is that the amount of check in question CW1/B amounting to 1lakh pertains to the balance rent which is due from the accused. To SONICA Digitally signed by SONICA MEENA MEENA 16:33:44 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWO20237182021 show the relationship of land-lord and tenant with the accused the complainant has produced the rent agreement Exb. CW 1/A dt.11.7.2019. It is pertinent to mention here that the accused in the present case has admitted that the cheques in question are of his bank account and the signature upon the cheque in question Exb CW1/B is also admitted by the accused at the stage of notice framing by this court under Section 251 CrPC, and while recording his statement under Section 313 CrPC and also during his cross examination as DW1.

Therefore, the presumption arises under section 118 of the Negotiable Instruments Act, 1881 that the cheque in question was issued, or endorsed or transferred or accepted for consideration.

As per section 118 (a) of NI Act, it shall be presumed that "every negotiable instrument was made or drawn for consideration, and that every such instrument, when it has been accepted, indorsed, negotiated or transferred, was accepted, indorsed, negotiated or transferred for consideration".

Furthermore, as per Section 139 of NI Act, it shall be presumed that "the holder of cheque, received the cheque for the discharge, in whole or in part, of any debt or other liability, unless the contrary is proved."

Hon'ble Supreme Court has laid down in *Basalingappa vs. Mudibasappa* 2019 (5) SCC 418 that the signature on the cheque having been admitted, a presumption shall be raised under Section 139 that the cheque was issued in discharge of debt or liability. The statutory presumption drawn under Section 118 and Section 139 of NI Act mandates that once the signature of an accused on the cheque is established, then these 'reverse onus' clauses become operative. In such a situation, the obligation shifts upon the accused to discharge the presumption imposed upon him.

Accordingly, in view of the aforesaid facts, twofold presumptions arise in favour of the complainant i.e., firstly, that the cheques in question were issued on 30.03.2021 for consideration; secondly, that the cheques in question were issued by SONICA Digitally signed by SONICA MEENA MEENA 16:33:41 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 the accused in favour of complainant in discharge of whole or part of the legal liability. Indisputably, the said presumptions are rebuttable in nature.

In the case of *M/s. Kumar Exports Vs. M/s. Sharma Carpets*, 2009(1) R.C.R.(Criminal) 478, the Hon'ble Supreme Court held that:- "Under Section 138 of the Act the accused has two options. He can either show that consideration and debt did not exist or that under the particular circumstances of the case the non-existence of consideration and debt is so probable that a prudent man ought to suppose that no consideration and debt existed. To rebut the statutory presumptions an accused is not expected to prove his defence beyond reasonable doubt as is expected of the complainant in a criminal trial. The accused may adduce direct evidence to prove that the note in question was not supported by consideration and that there was no debt or liability to be discharged by him. Something which is probable has to be brought on record for getting the burden of proof shifted to the complainant. To disprove the presumptions, apart from adducing direct evidence to prove the non-existence of consideration the accused may also rely upon circumstantial evidence and if the circumstances so relied upon are compelling, the burden may likewise shift again on to the complainant. The accused may also rely upon presumptions of fact, for instance, those mentioned in Section 114 of the Evidence Act to rebut the presumptions arising under Sections 118 and 139 of the Act. Once such rebuttal evidence is adduced and accepted by the court, having regard to all the circumstances of the case and the preponderance of probabilities, the evidential burden shifts back to the complainant and, thereafter, the presumptions under Sections 118 and 139 of the Act will not again come to the complainant's rescue".

Now let us examine the facts of the case in the light of aforesaid legal principles. To rebut the presumption the accused has examined himself as DW1 wherein he has stated in his examination in chief that he has no liability towards complainant. His father used to deal with the complainant and he doesn't know how the cheque in question came into the possession of the complainant. He has further stated that he had handed over the cheque in question to his father in 2020 and his late father only maintained a diary of the transaction executed between his late father and the complainant.

SONICA Digitally signed by SONICA MEENA MEENA 16:33:42 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024

MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 He has also stated that he had cleared all the rent before leaving the rental accommodation. All the averments made by the accused DW1 are only oral statements without any corroboration showing any receipt of payment of rent by him. The accused side has failed to bring any material which proves that the aforesaid averments made by the complainant in his evidence is false. Thus, there is no reason to disbelieve the testimony of the complainant. Further, during the cross examination the accused DW1 he has admitted the rent agreement CW1/A and his signature upon it at point A. Therefore, is evident as per Exb. CW 1/A Rent Agreement that the accused and complainant shared landlord and tenant relationship.

The accused has further examined DW2 Deepak Dutta (brother-in-law) who has stated in his examination in chief that he was never a part of any transaction between the complainant and accused and is not aware that the father of the accused used to deal with complainant. The witness DW2 has further denied that he recommended the complainant to advance the loan to the accused and has also denied that he visited the complainant with father of accused for the loan in question. He has also denied visiting with his wife to the complainant and requesting to reduce the amount. Taking into consideration the deposition by the said witness he has not stated anything in his evidence about the cheque in question and has rather denied being a part of any transaction between complainant and accused. Therefore, it is evident that the said witness DW2 is unaware about the transactions between the complainant and accused as landlord and tenant as per the rent agreement Ex. CW1/A which is admitted by the accused DW1 himself during his cross examination. The witness DW2 has admitted in his cross examination that the complainant had given him the legal demand notice at his home to deliver it to the accused Neeraj and the said witness DW2 has also admitted his signature on the legal demand notice at point A and has also stated that the accused Neeraj came to his house and took the legal demand notice from him which itself proves that the witness DW2 was aware about the transactions between the complainant and accused and the legal demand notice CW1/D was delivered upon the accused by him.

SONICA Digitally signed by SONICA MEENA MEENA 16:33:43 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSWo20237182021 With respect to the fact that how the cheques of the accused reached in the possession of the complainant, the accused has taken inconsistent stands at the different stages of trial. The accused has stated in his defence during his examination under section 313 CrPC that "The complainant pressurized me to give the cheque " but the accused has stated at the stage of framing of notice under section 251 CrPC that "I have friendly relations with the complaint therefore a blank signed cheque was given to the complainant by me" and during the examination in chief of the accused as DW1 he has stated " I do not know how the cheque in question came into the hands of the complainant." All the statements made by the accused are contradictory to each other and therefore version of the accused is completely unreliable.

Thus, the accused has evidently failed to substantiate his line of defense that the complainant pressurized him to give the cheque and to rebut the presumption by providing any satisfactory evidence to show that preponderance of probabilities are in favour of his defence. Thus, there is no

reason to disbelieve the testimony of the complainant. Accordingly, in view of the aforesaid analysis, considering the entire case in totality the accused has failed to create a dent in the case of the complainant and thereby rebut the presumptions raised in favour of the complainant. Thus, the accused has failed to prove that he had no legal liability towards the complainant. Therefore, the fact that the cheques were issued for discharge of legal debt or liability will have to be taken to be proved by force of the presumption, without requiring anything more from the complainant. This issue is accordingly found proved in favour of the complainant.

Whether the cheques have been returned as dishonoured on ground of the insufficiency of funds?

In the context of the above-mentioned issue, it is pertinent to mention section 146 of the Negotiable Instruments Act, 1881:-

"146. Bank's slip prima facie evidence of certain facts.- The Court shall, in respect of every proceeding under this Chapter, on production of bank's slip or memo having thereon the official mark denoting that the cheque has been dishonoured, presume the SONICA Digitally signed by SONICA MEENA MEENA 16:33:43 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSW020237182021 fact of dishonour of such cheque, unless and until such fact is disproved." The complainant in the present case has got Exb. CW1/C Bank Return memo dt. 26.04.2021 exhibited in his evidence, whose testimony is of formal nature and stands un rebutted. Accordingly, the Exb. CW1/C Bank Return memo stands proved. By virtue of the said return memo, the complainant has succeeded in proving that the cheque in question Cheque 000002 dt. 30.03.2021 for Rs.1 lakh is dishonoured on the ground of "Funds insufficient".

Whether the demand for payment of the cheque amount was made within 30 days of the receipt of the information of dishonour of cheque?

It appears from the Exb. CW1/C Bank Return memo the cheques in question was dishonoured on 26.04.2021 and the Legal Demand Notice Ex. CW1/D was given by hand to the accused Neeraj by DW2 Deepak Dutta on 05.05.2021. Thus, it is proved by the complainant that the demand for the payment of the cheque amount was made within 30 days of receipt of information of the dishonour of the cheque.

Whether the accused failed to make payment of the cheque amount within 15 days from the date of the receipt of the legal notice and the complaint was filed within one month from the date of arising of cause of action?

It transpires from the record that the Legal demand notice CW1/D was received by the accused on 05.05.2021 as stated by DW2 Deepak Dutta on oath during his cross examination that accused Neeraj came to his house and took the legal demand notice from him. The complaint was filed within 30 days thereafter on 04.06.2021. Thus, the complainant has succeeded in proving this issue.

15. Conclusion: Therefore, in view of the material placed on record and arguments advanced by both the sides and detailed analysis of the evidence led by the parties, this court is of the view that the testimony of the complainant in his evidence of affidavit stands duly proved. Thus, the complainant has succeeded in proving all the ingredients of section 138 of the NI Act. Whereas, the accused has failed to rebut the SONICA Digitally signed by SONICA MEENA MEENA 16:33:45 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024 MAHAVIR KAUSHIK VS. NEERAJ ROHILLA CNR No. DLSW020237182021 presumptions raised in favour of the complainant and to raise a probable defence of non-existence of any legally enforceable debt or liability to the reasonable satisfaction of this court.

Resultantly, this court finds the accused Neeraj Rohilla s/o Sh. Jagmohan Rohilla, guilty and hence, he stands convicted for the offence punishable U/s 138 NI Act.

Copy of this judgment be given free of cost to the accused.

Announced in the open court through video conferencing on 17/12/2024 in the presence of the accused.

SONICA by SONICA MEENA MEENA Date:

Dated 17.12.2024 2024.12.17 16:36:02 +0530 (SONICA MEENA) Judicial Magistrate First Class (Digital Court-02) South West District, Dwarka Court/ND/17.12.2024
Note:- This judgment contains 14 pages and each page has been signed by me.

SONICA MEENA MEENA Date:

2024.12.17 16:36:08 +0530 (SONICA MEENA) Judicial Magistrate First Class (Digital Court-02) South West District, Dwarka Court/ND/17.12.2024 SONICA Digitally signed by SONICA MEENA MEENA 16:33:44 +0530 Date: 2024.12.17 (SONICA MEENA) JMFC-02 (Digital Court-02) South West District, Dwarka Courts/ND/17.12.2024